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College Sports Media Rights: Background and Issues for Congressional Consideration

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SUMMARY

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College Sports Media Rights: Background and Issues for Congressional Consideration

The National Collegiate Athletic Association (NCAA), a voluntary, self-governing organization of four-year colleges and universities, includes intercollegiate athletics programs organized into divisions, subdivisions, and conferences. Division I (DI) schools compete at the highest level and can offer students full athletic scholarships. Within DI are an elite group of conferences, known as the *Autonomy* or *Power Four* conferences, that have autonomy to create their own rules. For schools within the Power Four conferences, sales of media rights for college sports represent the largest source of revenue. College sports media rights contracts have far-reaching effects on the finances of schools and the quality of life of student athletes. Schools have switched conference memberships to maximize media revenue in lieu of geographic proximity. As a result, student athletes spend an increasing portion of their time traveling thousands of miles to play games. Moreover, as a condition of the media contracts that generate revenue for schools' athletics departments, schools must pay to construct and operate on-site production studios and rely on students to produce and transmit telecasts of sporting events to cable networks and streaming services.

Congress may consider issues relating to media rights contracts, conference alignments, and funding for college sports broadcast production facilities. As one option, Congress could amend current law. An example of such legislation in the 119th Congress is the Protect College Sports Act of 2026 (PCSA; S. 4668), which Senator Ted Cruz sponsored and for which Senator John Thune submitted an amendment in the nature of a substitute, S.Amdt. 6776. The bill with the amendment passed the Senate on September 28, 2026 (hereinafter PCSA, as amended). The Senate also agreed to three amendments to S.Amdt. 6776, including S.Amdt. 6831, which would modify the prohibition on certain conference mergers and acquisitions.

Title II of the PCSA, as amended, would amend the Sports Broadcasting Act of 1961 by giving an antitrust exemption to NCAA DI colleges and/or conferences to form and operate a new entity, known as a "covered entity," to collectively negotiate media rights. The covered entity may form if enough schools voluntarily join and the entity meets certain requirements. One requirement is a mandate to offer a free local telecast option for viewing the broadcast of each football/basketball game within the college's local television market. Another requirement is that the entity must include a minimum of 75% of schools within the DI Football Bowl Subdivision (FBS).

Section 205 of the PCSA, as amended, would add a new Section 7 to the Sports Broadcasting Act that would limit the ability of conferences generating more than $700 million in revenue for FY2025 or any subsequent fiscal year to merge or consolidate with, or acquire the assets or media rights of, another covered conference or any institution that has competed in football in a covered conference within the preceding three years, unless the transaction would produce a conference containing at least 75% of FBS schools. Pursuant to S.Amdt. 6831, such conferences could have a maximum of 20 members.

Title III of the PCSA, as amended, would authorize Congress to appropriate $180 million annually for each of FY2027-FY2032 for a competitive grant program within the U.S. Department of Commerce to help historically Black colleges and universities invest in infrastructure relating to broadband (i.e., high-speed internet service and equipment), information technology, journalism, media production, and sports broadcasting.

As schools rely on students to fulfill production mandates stipulated by their media contracts, a potential issue for consideration is the extent to which schools and media organizations may standardize working conditions and expectations for students, particularly if these mandates become part of the media distribution agreements negotiated by a covered entity (Title II of the PCSA, as amended). Another potential issue for congressional consideration is whether the Sports Broadcasting Act should provide an antitrust exemption for professional sports leagues to jointly negotiate media rights solely for media that is free to the public (e.g., broadcast television) or whether the exemption should extend to subscription media. Congress could also consider whether the provisions of the PCSA, as amended, governing conference expansion could discourage schools from joining a proposed covered entity.

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Introduction

The National Collegiate Athletic Association (NCAA), a voluntary, self-governing organization of four-year colleges and universities, includes intercollegiate athletics programs organized into divisions,[1] subdivisions, and conferences.[2] The divisions, subdivisions, and conferences set the structure for athletic competitions, including rules governing how many games colleges and universities play, which schools compete against one another, and the organization of postseason tournaments.

Several member schools of conferences have realigned, in part to maximize revenue from media rights agreements. The realignments have made the conferences more geographically dispersed over time.[3] One consequence of the realignments is that student athletes may spend a significant portion of their time in school traveling thousands of miles to play games.[4] In a June 2026 hearing, the Senate Committee on Commerce, Science, and Transportation discussed the relationship between media rights agreements, conference realignments, and student athletes' quality of life.[5]

According to data reported by the Knight-Newhouse College Athletics Database (Knight-Newhouse) and a U.S. Government Accountability Office (GAO) report—published in response to a request from the chairman of the House Committee on Education and the Workforce[6]—most schools' athletics departments lose more money than they generate. The athletics department expenses tracked by Knight-Newhouse and GAO may not reflect the capital expenditures that schools incur to meet media production requirements stipulated by their college sports media contracts. Thus, the true costs of college sports may be higher than estimates solely based on spending associated with athletics programs.

Congress could continue to let colleges and universities organize and govern sports themselves, or Congress may consider oversight or legislation regarding college sports media rights, conference alignments, and funding for video production facilities. As one option, Congress could amend current law. For example, the Protect College Sports Act of 2026 (PCSA; S. 4668), which Senator Ted Cruz sponsored and for which Senator John Thune submitted S.Amdt. 6776, an amendment in the nature of a substitute (hereinafter PCSA, as amended), contains several provisions that would address those three issues, among others. The bill with the amendment passed the Senate on September 28, 2026. The Senate also agreed to three amendments to S.Amdt. 6776, including S.Amdt. 6831, which would modify the prohibition on certain

[1] "Each division has the independent authority to organize itself, including setting its own governing structure and standards for academic eligibility." U.S. Government Accountability Office (GAO), *College Athletics: Most Programs Spend More Than They Generate in Revenue*, July 14, 2026, p. 17, n. 2 (hereinafter GAO, *College Athletics*, GAO-26-108640).

[2] GAO, *College Athletics*, GAO-26-108640, p. 2 and p. 17, n. 1.

[3] See, for example, Jon Wilner, "The Pac-12 Returns: Our Look at Four Strategic Mistakes That Caused the Conference to Implode in the First Place," *San Jose Mercury News Online*, August 27, 2026.

[4] Billy Witz, "Being a College Athlete Now Means Constant Travel and Missed Classes," *New York Times*, October 30, 2024, https://www.nytimes.com/2024/10/30/us/college-football-conference-realignment.html.

[5] U.S. Congress, Senate Committee on Commerce, Science, and Transportation, *Protecting College Sports: Supporting Student Athletes, Restoring Fair Competition, and Saving the Games Fans Love*, hearing on S. 4668, 119th Cong., 2nd sess., June 3, 2026, https://www.commerce.senate.gov/meetings/protecting-college-sports-supporting-student-athletes-restoring-fair-competition-and-saving-the-games-fans-love/.

[6] Letter from Tim Walberg, chairman, House Committee on Education and the Workforce, to The Honorable Gene L. Dodaro, Comptroller General, GAO, February 3, 2025, https://edworkforce.house.gov/uploadedfiles/ltr_to_gao_athletics.pdf.

conference mergers and acquisitions. Another potential issue for congressional exploration is the effect of media organizations' sports video production requirements on schools' finances and students, including on historically Black colleges and universities (HBCUs), which the PCSA, as amended, addresses.

This report provides information about (1) the structure of college football regular season media rights negotiations, (2) the relationship between media rights agreements and the 2024 conference realignments, and (3) grant programs, such as for HBCUs. This report also describes potential issues for congressional consideration and options for Congress, including the enactment of provisions of the PCSA, as amended.

Background

GAO states that in the 2023-2024 academic year, 94% of Division I (DI) schools (i.e., schools competing at the highest level and offering students full athletic scholarships) reported that their college athletics programs spent more than they generated in revenue (330 of 352 colleges).[7] DI includes three subdivisions: the Football Bowl Subdivision (FBS); the Football Championship Subdivision (FCS); and the Basketball Subdivision, also known as the Non-Football Subdivision.[8]

FBS schools, which are among the most competitive DI schools in football,[9] collectively spent $13.06 billion on college sports in 2025 and collectively generated $13.03 billion in revenue, according to Knight-Newhouse.[10] Within the FBS schools is an elite group of conferences,[11] known as the "Autonomy" or "Power Four" conferences, to which NCAA has granted autonomy to create their own rules.[12] The Power Four are the (1) Atlantic Coast Conference (ACC), (2) Big 12 Conference (Big 12), (3) Big Ten Conference (Big Ten), and (4) Southeastern Conference (SEC).[13]

Table 1, using data reported by Knight-Newhouse, illustrates that member schools of three of the Power Four conferences (ACC, Big Ten, and SEC) collectively spent more money on athletics programs than they received in revenue in 2025.

[7] GAO, *College Athletics*, GAO-26-108640, pp. 1, 9.

[8] GAO, *College Athletics*, GAO-26-108640, p. 2.

[9] GAO, *College Athletics*, GAO-26-108640, p. 2.

[10] Knight-Newhouse College Athletics Database, "Football Bowl Subdivision," accessed August 24, 2026, https://knightnewhousedata.org/fbs. The Knight-Newhouse College Athletics Database is a joint project of the Knight Commission on Intercollegiate Athletics and Syracuse University's Newhouse School of Public Communications.

[11] GAO, *College Athletics*, GAO-26-108640, p. 2.

[12] Knight-Newhouse College Athletics Database, "About the Data, Data Definitions and Methodology, Autonomy Conferences," accessed August 24, 2026, https://knightnewhousedata.org/about-the-data.

[13] NCAA, *NCAA Division I 2026-27 Manual* (NCAA Publishing, 2026), p. x, https://web3.ncaa.org/lsdbi/reports/getReport/90008 (see definition of voting requirements for *area of autonomy*).

Table 1. Power Four Conference Member School Athletics Programs Collective Expenses and Revenues in 2025

Power Four Conference	Total Revenues	Total Expenses	Total Revenues – Total Expenses
ACC	$1,493,171,552	$1,536,091,870	($42,920,318)
Big 12 Conference	$1,733,848,487	$1,727,705,565	$6,142,922
Big Ten Conference	$3,118,338,007	$3,139,614,974	($21,276,967)
SEC	$3,359,998,578	$3,382,033,775	($22,035,197)

Source: Knight-Newhouse College Athletics Database, "Football Bowl Subdivision," accessed September 2, 2026, https://knightnewhousedata.org/fbs.

Notes: ACC = Atlantic Coast Conference; SEC = Southeastern Conference. "Total Expenses" represent athletics programs' total operating expenses at each conference's member schools, including costs of athletic scholarships. "Total Revenues" represent total athletics programs' revenues at each conference's member schools minus transfers to member institutions. Amounts in nominal dollars.

GAO estimates that during the 2023-2024 academic year, revenue from sports media rights sales accounted for 23%, or $2.3 billion, of total revenues generated for athletics programs for the Power Four conferences.[14] GAO estimates that the $2.3 billion generated by colleges within the Power Four conferences was almost as high as all athletics program revenue generated by all other DI colleges combined ($3.1 billion).[15] The market research firm S&P Global Market Intelligence Kagan, using a different methodology from GAO, reports an annual average of media rights revenues based on the length of the contracts. S&P Global Market Intelligence Kagan estimates a higher amount—about $2.5 billion annually, on average—for the Power Four conferences for sports television rights alone.[16]

Media Rights Negotiations

Previous Attempts to Collectively Negotiate Media Rights

The Sports Broadcasting Act of 1961 (SBA; P.L. 87-331) provides an antitrust exemption for teams within the National Football League (NFL), National Basketball Association (NBA), Major League Baseball (MLB), and National Hockey League (NHL) to jointly negotiate media rights. Within the SBA, a provision designed to protect revenues received by colleges from ticket sales to in-person games indicates Congress's early interest in income received by college sports programs.[17] At that time, in-person game receipts rather than sales from media rights were the primary revenue sources for athletics departments.

[14] GAO, *College Athletics*, GAO-26-108640, p. 9. GAO states that in the context of its report, "media rights revenue includes all revenue received for radio, television, internet, digital and e-commerce rights, including the portion of conference distributions related to media rights, if applicable" (GAO, *College Athletics*, GAO-26-108640, p. 18, n. 16). The figures GAO cites are not adjusted for inflation. NCAA provided GAO data pursuant to GAO's request.

[15] GAO, *College Athletics*, GAO-26-108640, pp. 8-9.

[16] S&P Market Intelligence Kagan relied on a combination of industry data and internal estimates. Scott Robson et al., *Sports Report 2026*, S&P Global Market Intelligence Kagan, April 1, 2026 (available via subscription).

[17] "[NCAA spokespeople] state that a principal source of support for [college athletic] programs is gate receipts from intercollegiate events, mostly from football, and to the extent that gate receipts are insufficient to maintain these programs, institutional funds must be employed or the programs themselves reduced.... The committee believes that it is desirable to limit the proposed antitrust exemption so that broadcasts of professional football games shall not impair (continued...)

In 1984, the U.S. Supreme Court decided that collective media rights negotiations by NCAA violated antitrust laws. Events leading up to this decision provide context about the current landscape of college sports media rights negotiations and why granting colleges a statutory antitrust exemption to negotiate media rights, and conditions for the entity that would do so, is an option for congressional consideration.

In 1977, members of five major conferences and several independent schools—a total of 62 higher education institutions—formed the College Football Association (CFA) to coordinate internal NCAA lobbying efforts on behalf of the member schools, which had large college football programs.[18] All CFA members were also members of NCAA, which controlled media rights for all member institutions at that time.[19] Beginning in 1979,

> CFA members began to feel that those colleges with major football programs should have a greater voice in the formulation of football television policy than they had in NCAA. CFA members evidently disliked the fact that all NCAA members had an equal vote on issues involving football television, even though a great many members either did not play football or were otherwise not directly affected by the particulars of the football television contracts.[20]

In 1981, the National Broadcasting Company (NBC) offered the CFA a four-year, $180-million contract to televise its games. NBC's contract would have required the CFA to pull its members' games from the television rights contract that NCAA had negotiated with the American Broadcasting Company (ABC).[21] NCAA publicly threatened to expel any member institution that accepted NBC's offer. The Board of Regents of the University of Oklahoma and the University of Georgia Athletic Association subsequently sued NCAA, alleging that its control of the market of college football television rights violated antitrust laws.[22]

In 1984, the U.S. Supreme Court held in *NCAA v. Board of Regents of the University of Oklahoma* that NCAA's television rights policies violated Section 1 of the Sherman Antitrust Act of 1890 (15 U.S.C. §1), which prohibits any restraint of trade that restricts competition unreasonably.[23] The decision nullified NCAA's existing $280-million contracts, including arrangements to televise games in the 1984 season.[24] The court's decision meant that colleges would need to negotiate rights either as part of a smaller group or individually.

In the aftermath of the ruling, the CFA signed multiple television contracts on behalf of its members, which collectively covered the years 1984-1996.[25] The Big Ten, however, declined to

college football gate receipts." U.S. Congress, House Committee on the Judiciary, *Telecasting of Professional Sports Contests*, report to accompany H.R. 9096, 87th Cong., 1st sess., H. Rept. 87-1178, September 13, 1961, pp. 3-4.

[18] John J. Siegfried and Molly Gardner Burba, "The College Football Association Television Broadcast Cartel," *Antitrust Bulletin*, Fall 2004, pp. 799, 802. The only major football-playing schools that were not College Football Association (CFA) members were members of the then Pacific 10 Conference and the Big Ten Conference (Big Ten). CFA membership was restricted to football-playing schools meeting certain standards. Regents v. NCAA, 346 F. Supp. 1281, 1286 (W.D. Okl. 1982).

[19] NCAA controlled college football television rights for 33 years, from 1951 through 1984. Siegfried and Burba, "The College Football Association Television Broadcast Cartel," p. 901.

[20] Regents v. NCAA, 346 F. Supp. 1281, 1286 (W.D. Okl. 1982).

[21] Siegfried and Burba, "The College Football Association Television Broadcast Cartel," p. 803.

[22] *NCAA v. Board of Regents*, 468 U.S. 85 (1984).

[23] For an overview of antitrust laws, see CRS In Focus IF11234, *Antitrust Law: An Introduction*, by Jay B. Sykes.

[24] Siegfried and Burba, "The College Football Association Television Broadcast Cartel," p. 805.

[25] Siegfried and Burba, "The College Football Association Television Broadcast Cartel," p. 810. After a string of member defections, the CFA disbanded in 1997. Siegfried and Burba, "The College Football Association Television Broadcast Cartel," p. 819.

join the CFA in 1984.[26] To streamline the negotiations process and provide more certainty to schools and media organizations, the Big Ten originated the concept of *granting of rights* whereby Big Ten member schools would sign over their rights to the conference in exchange for a percentage of revenue.[27]

Current Structure of Media Rights Negotiations

Today the granting of rights process applies to all Power Four conferences, as illustrated in **Figure 1**. The grant of rights contracts between schools and conferences and media rights agreements are separate agreements, though they are often influenced by each other.[28] Current exceptions to the granting of rights process are the University of Notre Dame and the University of Connecticut, which negotiate rights to their football games independently.[29]

Conferences generally sell rights to college sports games in tiers.[30] Tier 1 games are the highest profile and usually air on broadcast television networks.[31] Tier 2 games have smaller but substantial audiences and generally air on cable networks. Tier 3 games are less popular and air on streaming services, which often share corporate ownership with the cable and/or broadcast networks. For additional information about media rights contracts, see the "Funding for Video Production Facilities" section below.

Table B-1 provides information on the current media rights agreements held by the Power Four conferences and summarizes provisions of those media rights agreements.

[26] "Big 10, Pacific-10 Reject C.F.A.," *New York Times*, July 12, 1984, p. 36, https://timesmachine.nytimes.com/timesmachine/1984/07/12/059800.html?pageNumber=36.

[27] David Hale, "College Sports, Realignment, and the Origin of the Grant of Rights," *ESPN*, July 22, 2024, https://www.espn.com/college-football/story/_/id/40574931/acc-grant-rights-explained-clemson-florida-state-lawsuits.

[28] Hale, "College Sports, Realignment, and the Origin of the Grant of Rights."

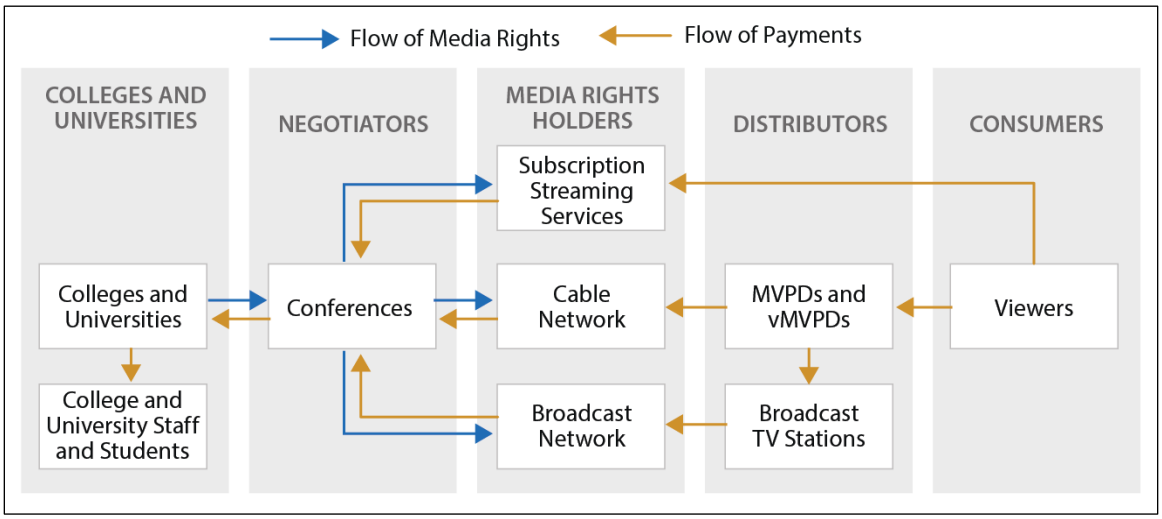
[29] Jacob Irons, "Millions for Media," *Scholastic*, University of Notre Dame, January 24, 2024, https://scholastic.nd.edu/issues/millions-for-media/; and Patrick Boots, "Big East Ratifies New Television Deal: What UConn Fans Need to Know," *The Daily Campus*, University of Connecticut, August 24, 2024, https://dailycampus.com/2024/08/28/big-east-ratifies-new-television-deal-what-uconn-fans-need-to-know/.

[30] Authority Network America, College Sports Authority, "College Sports Media Rights: TV Deals, Streaming, and Revenue," accessed August 27, 2026, https://collegesportsauthority.com/college-sports-media-rights/ (hereinafter College Sports Authority, "College Sports Media Rights").

[31] For background information about broadcast television networks, see CRS Report R49309, *Broadcast TV Networks and Affiliates: FCC Oversight and Marketplace Dynamics*, by Dana A. Scherer.

Figure 1. College Sports Media Rights Structure

For regular season college games



Source: Figure created by CRS from analysis of data by Authority Network America, College Sports Authority, "College Sports Media Rights: TV Deals, Streaming, and Revenue," accessed August 27, 2026, https://collegesportsauthority.com/college-sports-media-rights/.

Notes: The University of Notre Dame and the University of Connecticut negotiate media rights for their football telecasts independently of conferences. MVPD = multichannel video programming distributor. MVPDs include cable and satellite services, which retransmit over-the-air broadcast signals via wired cable or spectrum. vMVPD = virtual multichannel video programming distributor. vMVPDs are streaming services that deliver subscription packages of streaming linear channels, which may include broadcast TV stations, via the internet.

Issues for Congressional Consideration and Potential Options

Antitrust Exemptions to Form a Covered Entity

Professional sports leagues have antitrust exemptions for the purpose of negotiating media rights in certain circumstances, and Congress could extend these to college sports. The SBA provides an antitrust exemption for teams within the NFL, NBA, MLB, and NHL to jointly negotiate media rights for "sponsored telecasts."[32] The NFL's antitrust exemption does not apply to telecasts of professional football games to viewers within a 75-mile radius of high school and college football games occurring on Friday evenings or "any Saturday … beginning on the second Friday in September and ending on the second Saturday of December."[33] This provision protects windows traditionally reserved for high school and college football matches from direct competition with televised NFL games.[34]

Congress could provide colleges and universities with a similar statutory antitrust exemption for negotiating media rights. Alternatively, Congress could observe marketplace developments and

[32] The exemption would apply to any similarly structured professional league in these sports rather than being limited to certain named leagues. The Sports Broadcasting Act of 1961 (SBA) does not define the term *sponsored telecasts*.

[33] 15 U.S.C. §1293.

[34] In its committee report about the SBA, the Senate Committee on the Judiciary stated, "the committee believes that a legislative exemption of professional football from the antitrust laws should be specifically conditioned so that college football, upon which substantial educational programs depend for revenue, is not unduly prejudiced." U.S. Congress, Senate Committee on the Judiciary, *Telecasting of Professional Sports Contests*, report to accompany H.R. 9096, 87th Cong., 1st sess., S. Rept. 87-2087, September 20, 1961, p. 3.

permit conferences and media organizations to continue to negotiate agreements without direct federal government oversight.

Absent a direct antitrust exemption, conferences that continue to add schools may, once they reach a critical mass, risk being sued by stakeholders or antitrust agencies for violating antitrust laws. In 1990, the Federal Trade Commission (FTC) staff charged the CFA, which then included 63 colleges, with violating antitrust laws by forming "a cartel of the nation's best college football teams."[35] The FTC staff claimed that the CFA's contract with ABC for exclusive rights to telecast games harmed competition.[36] The agency's commissioners ultimately concluded in 1994 that the FTC lacked jurisdiction over the CFA, citing the association's not-for-profit nature.[37] It is possible that in light of the marketplace and legal developments that have governed college sports since the FTC commissioners reached their decision,[38] the FTC or a court might reach a different conclusion.

Title II of the PCSA, as amended, would amend the SBA by adding a subsection 1(b) to extend this antitrust exemption to a new *covered entity*[39] comprising DI colleges and/or conferences, which might form provided that a certain number of schools voluntarily join and the entity meets certain requirements. Section 203 of the PCSA, as amended, would change the SBA by adding a Section 5 called "requirements for entities selling media rights." The following subsections of this report discuss potential requirements for Congress's consideration related to the negotiations of media rights, scheduling, and conference alignment that could govern such a covered entity.

Membership Thresholds for a Covered Entity

Congress may consider the membership requirements of a potential covered entity. Congress could require that a minimum number of schools or conferences—either within DI or among other intercollegiate divisions or athletic associations—participate in a covered entity.

For example, the PCSA, as amended, proposes a new Section 5(b) of the SBA that would describe membership requirements of a covered entity; the creation of the entity would hinge on the participation of a supermajority of FBS schools (75%). The covered entity would then be required to invite all DI institutions and conferences, including those in the FCS and Basketball Subdivision. As of July 1, 2026, the FBS has a total of 138 schools; the minimum threshold of FBS participants under the PCSA, as amended, would therefore be 104 schools. Congress could set a higher or lower threshold to adjust how many schools would have to participate for a covered entity to fall under an antitrust exemption.

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[35] "FTC Hits ABC, CFA on TV Games," United Press International (UPI), September 6, 1990, https://www.upi.com/Archives/1990/09/06/FTC-hits-ABC-CFA-on-TV-games/8113652593600/.

[36] "FTC Hits ABC, CFA on TV Games," UPI.

[37] Federal Trade Commission, "College Football Association, et al., Final Order, Opinion, etc. in Regard to Alleged Violation of Sec. 5 of the Federal Trade Commission Act, Docket 9242," 117 *FTC Decisions* 971, June 16, 1994, https://www.ftc.gov/sites/default/files/documents/commission_decision_volumes/volume-117/ftc_volume_decision_117_january_-_june_1994pages_971_-_1074.pdf.

[38] See, for example, CRS Legal Sidebar LSB11484, *The Protect College Sports Act of 2026: Potential Implications for Title IX*, by Jared P. Cole and Whitney K. Novak (discussing a series of antitrust lawsuits that have challenged the NCAA's rules limiting financial compensation of student athletes). For a discussion of examples of private equity firms' consideration of college sports as investment opportunities, see Matt Baker, "Why Are College Sports and Private Equity Converging? Here Are the Best-Case Scenarios," *The Athletic*, March 6, 2026, https://www.nytimes.com/athletic/7090151/2026/03/06/college-football-sports-private-equity-money/.

[39] §201(b)(2)(B)(3) of the Protect College Sports Act of 2026 (PCSA as amended) defines *covered entity* as "the entity formed by a joint agreement of institutions or conferences described in subparagraph (A) or (B) of section 5(b)(1) that meets each of the requirements under section 5."

As illustrated in **Table 1** and **Table B-1**, among the Power Four conferences, SEC and Big Ten members (16 members[40] and 18 members,[41] respectively) generate the most revenue. For the covered entity to meet the 104-college threshold set by the PCSA, as amended, either one school from one of these conferences or one of the two schools that negotiate football rights independently—the University of Notre Dame[42] and the University of Connecticut[43]—would need to agree to join it.

To increase the likelihood of the formation of a covered entity under new legislation, Congress could propose a lower the minimum threshold of member schools or use a more inclusive metric (e.g., DI schools rather than FBS schools). However, the greater the number of schools with large fan bases and highly competitive programs that join a potential covered entity, the more bargaining power the covered entity would have.[44]

Covered Entity and Existing Media Rights Contracts

Schools negotiate media rights contracts years before they take effect. Big Ten media rights agreements are currently set to expire before the agreements of the other Power Four conferences. This mismatch in timelines might influence media rights negotiations processes if a new covered entity is formed, even if Big Ten member schools opt not to join the covered entity.

If Congress chooses to permit colleges to form a new entity to receive an exemption from antitrust laws for the purpose of negotiating media rights, it could specify the conditions under which media organizations and colleges could terminate their agreements prior to their expiration dates. For example, Congress could consider permitting either media companies or conferences to opt out of current contracts if they provide the counterparty with notice. Congress could specify the timeline for each party to provide notice. This option might facilitate the ability of schools wishing to join the covered entity to negotiate future media rights agreements simultaneously, rather than wait for each active media rights agreement to expire.

Alternatively, Congress could permit the current media rights agreements to expire on the dates specified within the contracts. The proposed Section 5(i)(3) to the SBA within Title II of the PCSA, as amended, states that "nothing within the [PCSA, as amended,] shall be construed to abrogate, terminate, or modify a contract or other legally enforceable agreement in effect on the date of enactment of the [PCSA, as amended,] or to provide a defense to or immunity from a claim arising from breach or nonperformance of such contract or legally enforceable

[40] See the "Schools" drop-down menu at SEC Sports, https://www.secsports.com/.

[41] See "All Schools" at "Big Ten Conference," https://bigten.org/.

[42] The University of Notre Dame has negotiated its football contracts independently since 1991. Ravi Shankar, "The History of Notre Dame's Independent Legacy in College Football," *College Football Network*, May 25, 2025, https://collegefootballnetwork.com/the-history-of-notre-dames-independent-legacy-in-college-football/.

[43] The University of Connecticut's status as independent with respect to its negotiation of college football contracts reflects its decision to prioritize college basketball in 2020 by joining the Big East, an athletic conference that does not sponsor football. Jeff Borzello, "UConn Officially Rejoins Big East After Seven-Year Absence," *ESPN*, July 1, 2020, https://www.espn.com/college-sports/story/_/id/29392657/uconn-huskies-officially-back-big-east-conference. See also Dan Wolken, "National Title Validates Connecticut's Choice to Embrace Basketball at Football's Expense," *USA Today*, April 4, 2023, https://sports.yahoo.com/national-title-validates-connecticuts-choice-100003365.html.

[44] Proposants of the bill contend that the intention of the 75% threshold is to enable colleges that opt to pool media rights negotiations to benefit from partnering with a valuable conference (e.g., Big Ten or SEC) or school (e.g., University of Notre Dame). Amanda Christovich, "Senators Introduce Long-Awaited Bipartisan College Sports Bill," *Front Office Sports*, May 27, 2026, https://frontofficesports.com/article/senators-introduce-long-awaited-bipartisan-college-sports-bill/.

agreement."[45] Several current college sports television contracts run through 2030 or later (see **Table B-1**).

Congress could also specify that the creation of a covered entity would not affect existing contracts. The proposed Section 5(f)(3) within Title II of the PCSA, as amended, states that colleges and conferences may not contribute media rights to a covered entity if an existing media rights contract prevents them from doing so.

Game Scheduling Requirements for Participation in a Covered Entity

Congress could set priorities or restrictions for game scheduling on certain days and times as a condition for joining or participating in a covered entity. Alternatively, Congress could continue to permit schools and conferences to schedule games to maximize the potential revenue they can generate from media contracts and tickets sales to games, among other revenues sources.

Reports indicate that officials who organize college football playoffs[46] are considering whether to expand the current 12-team format to 24 teams.[47] Such an expansion would create new games that might compete with the Army-Navy football game, which since 2009, has been the only FBS game scheduled on the second Saturday of December.[48] If 24 schools participated in an expanded college football playoff period that included a game on that day, they might be able to generate more revenue from media rights than they do currently.[49]

Congress could require a new covered entity to preserve the Army-Navy football game window (as §3 of the PCSA, as amended, would do) or to consult with the service academies about game scheduling. If FBS schools determined that they might generate more revenue by scheduling playoff games on the second Saturday of December than they could by participating in a new covered entity, they might be less inclined to join the covered entity.[50] Reports indicate that the

[45] These include the contracts of the Big 12 Conference (runs through the 2030-2031 academic year), Big Ten (runs through the 2029-2030 academic year), SEC (runs through the 2033-3034 academic year), and Atlantic Coast Conference (runs through 2035). "Current College Sports Television Contracts," Business of College Sports, updated March 19, 2024, https://businessofcollegesports.com/current-college-sports-television-contracts/.

[46] The College Football Playoff (CFP), the postseason structure used to determine the national Division I Football Bowl Subdivision (FBS) champion, is administered by the College Football Playoff Management Committee. The committee includes commissioners of the 10 FBS conferences and one representative from the University of Notre Dame. CFP, "CFP Governance," accessed September 10, 2026, https://collegefootballplayoff.com/sports/2019/4/3/governance.

[47] Ross Dellenger, "College Football Playoff Leaders Trigger 30-Day Window with ESPN, Furthering Consideration for Expansion," *Yahoo! Sports*, September 8, 2026, https://sports.yahoo.com/college-football/breaking-news/article/sources-cfp-leaders-trigger-30-day-negotiating-window-with-espn-furthering-consideration-for-playoff-expansion-201431827.html.

[48] "Trump Order Aims to Keep Army-Navy in Exclusive TV Window," Reuters, March 21, 2026, https://www.reuters.com/sports/trump-order-aims-keep-army-navy-exclusive-tv-window—flm-2026-03-22/.

[49] Shehan Jeyarajah, "College Football Playoff Triggers 30-Day Window to Negotiate Expanding the Field to 24 Teams," *CBS Sports*, September 8, 2026, https://www.cbssports.com/college-football/news/college-football-playoff-expansion-negotiating-window/.

[50] The scheduling of such a game would be contrary to the policy articulated within the executive order issued by President Donald J. Trump on March 20, 2026. ("Such scheduling conflicts weaken the national focus on our Military Service Academies and detract from a morale-building event of vital interest to the Department of War. Accordingly, it is the policy of the United States that no college football game, specifically college football's CFP or other postseason games, be broadcast in a manner that directly conflicts with the Army-Navy Game.") Executive Order 14396 of March 20, 2026, "Preserving America's Game," 91 *Federal Register* 14639, March 25, 2026, https://www.govinfo.gov/content/pkg/FR-2026-03-25/pdf/2026-05867.pdf.

athletics directors of the U.S. service academies may be willing to schedule the game on a different day.[51]

Congress could require schools to play their most frequently played rivals, regardless of whether the rivals are in or out of conference, as a condition for joining the covered entity. For example, the addition of a new Section 5(g) to the SBA within Title II of the PCSA, as amended, would require schools, to the extent practicable, to play their top historic football rivals on a regular schedule.[52] According to a press release issued by the Senate Committee on Commerce, Science, and Transportation, this provision in the PCSA, as amended, characterized as "a move back to regionalism, protects traditional rivalries on football schedules to ensure fans get to see their favorite teams play each other."[53] Depending on a given college's conference, under this option, Congress might require a college to play more inter-conference games as a condition of joining the covered entity.

Studies indicate that students who travel for many sports, including football, baseball, basketball, and swimming, can experience negative health effects, particularly students traveling eastward.[54] An option for Congress to address this concern could be to require a covered entity to consider geographic proximity as an additional factor in the scheduling of intercollegiate athletic competitions, including non-football games. Congress could also conduct hearings to further study this issue or direct federal agencies with expertise on this issue to do so.

Congress could also require conferences to prioritize the academic needs of student athletes and college staff in the scheduling of games. In May 2026, the American Football Colleges Association issued a statement recommending that the college football season be completed by the second Monday in January, in part to more closely match the academic calendar.[55] Section 206(a) of the PCSA, as amended, would amend Section 3 of the SBA by modifying the limitation to the NFL's antitrust exemption that applies during the college football season to state that the limitation would not apply to college football games scheduled, to the extent practicable, after January 8 of any year.[56] In contrast to many other potential scheduling provisions, this amendment to the SBA would not be a condition for colleges to receive an antitrust exemption for the purpose of jointly negotiating media rights.

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[51] Seth Emerson, "Navy AD Michael Kelly Open to Moving Army-Navy Football Game Up a Week," *The Athletic*, May 12, 2026, https://www.nytimes.com/athletic/7273692/2026/05/12/army-navy-football-schedule-move-ad-michael-kelly/.

[52] The PCSA, as amended, does not define *historic* or specify a period. Some colleges post their most frequently played opponents throughout a team's history on their websites. See, for example, Oregon State University, "Football History," accessed September 15, 2026, https://osubeavers.com/sports/football/opponent-history (sorting in descending order by games played).

[53] Senate Committee on Commerce, Science, and Transportation, "Updated Bipartisan Protect College Sports Act Will Stabilize College Sports, Codify Athletes' Rights & Protections in Law and Expand Athlete Compensation Opportunities," press release, August 5, 2026, https://www.commerce.senate.gov/press/dem/release/updated-bipartisan-protect-college-sports-act-will-stabilize-college-sports-codify-athletes-rights-protections-in-law-expand-athlete-compensation-opportunities/.

[54] H. Craig Heller et al., "The Negative Effects of Travel on Student Athletes Through Sleep and Circadian Disruption," *Journal of Biological Rhythms*, vol. 39, no. 1 (February 2024), pp. 5, 8, https://journals.sagepub.com/doi/epub/10.1177/07487304231207330; and Ozan Atalağ and Lincoln Gotshalk, "Travel Related Changes in Performance and Physiological Markers: The Effects of Eastward Travel on Female Basketball Players," *Journal of Physical Therapy Science*, vol. 35, no. 6 (June 2023), pp. 399-400, https://doi.org/10.1589/jpts.35.399.

[55] American Football Coaches Association, "AFCA Proposal on Calendar Structure and Playoff Expansion," press release, May 5, 2026, https://www.afca.com/afca-proposal-on-calendar-structure-and-playoff-expansion/.

[56] 15 U.S.C. §1293.

Availability of Games for Consumers for Participation in a Covered Entity

Consumers' abilities to watch games on their devices depend on the media rights negotiated for those games. The SBA provides an antitrust exemption for professional sports leagues to jointly negotiate media rights for *sponsored telecasts.* Neither the SBA nor the PCSA, as amended, define the term sponsored telecasts. In 1999, the Third Circuit Court of Appeals ruled in *Shaw v. Dallas Cowboys Football Club* that the term sponsored telecasts includes only advertising-supported media provided to the public at no charge, such as broadcast television.[57] An issue for congressional consideration is whether this condition implies that the term "sponsored telecasts" in the SBA (i.e., the media counterparties or a covered entity) includes subscription media. As an incentive for both professional and collegiate sports organizations to enable consumers to view games at no charge, Congress could amend the SBA to define the term sponsored telecasts in a matter consistent with the finding in *Shaw v. Dallas Cowboys Football Club*.

The PCSA, as amended, would not define the term sponsored telecasts, but Section 204 would amend the SBA by adding a new Section 6 called "market-level broadcast access for college football and basketball." The section stipulates that a covered entity would be required to offer a free local telecast option (e.g., on a local broadcast television station or advertising-supported streaming service) to view the broadcast of each football/basketball game within the college's local television market.

Section 204 also stipulates that the covered entity—and any network, distributor, or licensee holding market-level rights or seeking local media outlet option rights to intercollegiate athletic competitions—would need to negotiate in good faith to fulfill the free local telecast requirement. Section 6(c)(2) would give the Federal Communications Commission (FCC) jurisdiction over complaints alleging a violation of the requirement to negotiate in good faith.[58]

A risk of such a requirement might be that media organizations might not pay as much to the collective entity as they would for exclusive rights to local college games. For example, when the Big Ten Network telecasts multiple football games simultaneously, viewers receive regional feeds of games.[59] A requirement that members of the covered entity must offer the same games on an alternative outlet at no charge to viewers might devalue the media rights paid by a network, such as the Big Ten Network. In addition, some viewers may live in regions of the country in which over-the-air reception of broadcast television signals is limited.[60] Viewers who are unable to receive clear broadcast signals might need to pay fees to cable, satellite, or streaming services that offer broadcast television stations as part of their programming packages.[61] Congress could also

[57] Shaw v. Dallas Cowboys Football Club, Ltd., 172 F.3rd 299, 302 (3rd Cir. 1999).

[58] The Federal Communications Commission (FCC) enforces good faith negotiating requirements pertaining to agreements between broadcast television stations and cable operators and satellite operators for the right to retransmit the signals of broadcast television stations (47 C.F.R. §76.65).

[59] Big Ten Network, "Find Football on BTN," accessed September 15, 2026, https://bigten.org/btn/game-finder/. The Big Ten Network is a cable television network that is jointly owned by Fox Corporation (61%), the parent organization of the FOX broadcast network, and the Big Ten Conference Inc. (39%). Robson et al., *Sports Report 2026* (available via subscription); and S&P Global Market Intelligence Kagan database (profiles and ownership structure of cable networks).

[60] See, for example, FCC, "Engineering, DTV Reception Maps," accessed September 15, 2026, https://www.fcc.gov/media/engineering/dtvmaps. ("Actual [broadcast television] signal strength may vary based on a variety of factors, including, but not limited to, building construction, neighboring buildings and trees, weather, and specific reception hardware. Your signal strength may be significantly lower in extremely hilly areas.")

[61] For more information about the retransmission of broadcast television signals via these services, see CRS Report R49309, *Broadcast TV Networks and Affiliates: FCC Oversight and Marketplace Dynamics*, by Dana A. Scherer.

further investigate the costs of sports rights more generally and the relationship between those costs and availability to consumers.[62]

Conference Mergers and Acquisitions

Background and Current Conference Alignments

Current television rights agreements of the Big Ten, SEC, and Big 12 conferences became effective in 2024, 2025, and 2026, respectively. The years prior to the effective dates of these agreements, 2023-2025, coincided with mergers and acquisitions of schools between conferences that led to the geographically dispersed alignments illustrated in **Figure A-1**.

The history of the Pacific 12 (Pac-12) conference illustrates this transformational period. The roots of what is now known as the Pac-12 conference originated in December 1915 with four schools and the addition of several member schools during the subsequent 90 years.[63] Press reports indicate that the Pac-12's unsuccessful attempts in 2023 to negotiate a media rights agreement with a cable or broadcast network prompted several member schools to consider leaving.[64] Ten of the Pac-12's twelve member schools announced their departures between 2023 and 2025.[65] The two remaining members, Washington State University and Oregon State University, sued the Pac-12 conference organization board and its commissioner, claiming the departing schools broke conference rules by leaving.[66] According to news reports, 10 departing members of PAC-12 reached a settlement with Oregon State and Washington State (the 2 remaining members of PAC-12 in 2025) wherein the departing schools forfeited revenue they would have received in 2023-2024 from the Pac-12 conference and agreed to pay Oregon State and Washington State exit fees.[67]

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[62] See, for example, U.S. Congress, Senate Committee on Commerce, Science, and Transportation, *Field of Streams: The New Channel Guide for Sports Fans*, 119th Cong., 1st sess., May 6, 2026, S. Hrg 119-142; and U.S. Congress, House Committee on the Judiciary, Administrative State, Regulatory Reform, and Antitrust Subcommittee, *Examining the Sports Broadcasting Act*, 119th Cong., 2nd sess., June 10, 2026, H. Hrg. 119-73.

[63] Pac-12 Conference, "Sports, History of the Pac-12," accessed September 2, 2026, https://pac-12.com/sports/2024/6/16/history.aspx.

[64] Stewart Mandel and Max Olson, "Pac-12, Apple Deal Was $23M Per School and Underwhelming, but Hope Remained Until the 11th Hour," *The Athletic*, August 5, 2023, https://www.nytimes.com/athletic/4752583/2023/08/05/pac12-apple-tv-deal-college-football-realignment/ (hereinafter Mandel and Olson, "Pac-12, Apple Deal Was $23M Per School and Underwhelming").

[65] Emily Caron, "Money Talks, Schools Walk: Pac-12 Decimated by Flood of TV Dollars," *Sportico*, August 4, 2023, https://www.sportico.com/leagues/college-sports/2023/pac-12-departures-acc-sec-big-ten-big-12-media-money-1234733310/.

[66] Ellen Dennis, "WSU and OSU Sue Pac-12, Claiming Other Schools Broke Conference Rules by Leaving," *The Spokesman-Review*, September 8, 2026, https://www.spokesman.com/stories/2023/sep/08/wsu-osu-sue-pac-12-claim-other-schools-broke-confe/.

[67] Eben Novy-Williams and Michael McCann, "Pac-12 to Keep $65 Million from Exiting Schools in Settlement," *Sportico*, March 25, 2024, https://www.sportico.com/leagues/college-sports/2024/pac-12-settlement-members-revenue-1234772369/; and Sam Riffice, "From Power Five to Legal Puzzle: How the Pac-12 Collapsed and What Its Rebuild Teaches Sports Lawyers," *Florida Entertainment and Sports Law Review* (blog), University of Florida Levin College of Law, September 17, 2025, https://www.feslr.com/post/from-power-five-to-legal-puzzle-how-the-pac-12-collapsed-and-what-its-rebuild-teaches-sports-lawyer. Upon joining other conferences, these schools received partial shares of the revenue distribution that went to the existing member schools within their new conferences. For example, the University of Oregon and the University of Washington each received between $46 million and $48 million from the Big Ten for FY2025, and the remaining 16 members of the conference each received at least $76 million. Michael McDaniel, "The Power 4 Conferences Reveal Revenue Figures for 2025: Here's Where Each Conference Stands," *Sports Illustrated*, May 22, 2026, https://www.si.com/college-football/power-4-conferences-reveal-revenue-figures.

Similarly, the potential to increase their shares of media rights revenues prompted Florida State University (Florida State) and Clemson State University (Clemson) to threaten to leave the ACC. In December 2023 and March 2024, respectively, Florida State and Clemson separately sued the ACC to challenge the 23-year grant of rights agreements that the ACC schools had signed in 2013.[68] The ACC countersued each school to preserve the grant of rights agreement.[69] The parties reached a settlement in 2025 that reduced exit penalties for schools seeking to leave the ACC prior to 2036 and changed the ACC's model for distributing revenues among member schools.[70] The DI bylaws, which require FBS conferences to maintain at least eight active members, provide a two-year grace period for conferences to return to the required membership level.[71] Oregon State and Washington State opted to rebuild the Pac-12 by adding other schools. As of July 1, 2026, the Pac-12 conference had nine members.[72]

Two groups have proposed plans to create a "super league" to replace NCAA and College Football Playoff organizations for the purpose of scheduling games, determining eligibility for championship playoffs, and negotiating media rights.[73] Under one plan, universities would own a percentage of the super league.[74] Under an alternative plan, a private equity firm would invest $9 billion in the super league.[75]

Issues for Congressional Consideration and Potential Options

Membership Requirements for Conferences/Leagues

Congress could continue to permit NCAA subdivisions to enforce membership requirements or monitor developments regarding the potential formation of a Super League and similar proposed alternatives. The rationale behind such plans is that the members of a league such as a Super League could collectively generate more revenue from media rights by playing a greater number of competitive games that attract viewers, and consequently negotiate higher payments for media rights, than they do under the current system.[76] As described in the "Previous Attempts to Collectively Negotiate Media Rights" section above, however, the formation of a single entity

[68] Andrea Adelson, "ACC, Florida State, Clemson Reach Revenue Distribution Settlement," *ESPN*, March 4, 2025, https://www.espn.com/college-football/story/_/id/44108761/acc-florida-state-clemson-reach-revenue-distribution-settlement (hereinafter Adelson, "ACC, Florida State, Clemson Reach Revenue Distribution Settlement.")

[69] Adelson, "ACC, Florida State, Clemson Reach Revenue Distribution Settlement."

[70] Adelson, "ACC, Florida State, Clemson Reach Revenue Distribution Settlement."

[71] See §20.02.9.2, "Grace Period," and §20.02.9, "Football Bowl Subdivision Conference," in *NCAA Division I 2026-2027 Manual*, p. 336.

[72] Pac-12 Conference, "The New Pac-12 Conference Officially Launches with the Addition of Seven Full-Time Members," press release, July 1, 2026, https://pac-12.com/news/2026/6/30/general-the-new-pac-12-conference-officially-launches-with-the-addition-of-seven-full-time-members.aspx.

[73] Andrew Marchand and Stewart Mandel, "Inside the College Football 'Super League,' One Powerful Group's Idea to Fix a 'Dead' System," *The Athletic*, April 3, 2026, https://www.nytimes.com/athletic/5383639/2024/04/03/college-football-super-league-cst-realignment/ (hereinafter Marchand and Mandel, "Inside the College Football 'Super League'"); and Ross Dellenger, "While SEC and Big Ten Leaders Mull Major Changes, a New Super League Concept Could Radically Alter College Sports," *Yahoo! Sports*, October 8, 2024, https://sports.yahoo.com/while-sec-and-big-ten-leaders-mull-major-changes-a-new-super-league-concept-could-radically-alter-college-sports-130031473.html (hereinafter Dellenger, "While SEC and Big Ten Leaders Mull Major Changes, a New Super League Concept Could Radically Alter College Sports").

[74] Marchand and Mandel, "Inside the College Football 'Super League.'"

[75] Dellenger, "While SEC and Big Ten Leaders Mull Major Changes, a New Super League Concept Could Radically Alter College Sports."

[76] Marchand and Mandel, "Inside the College Football 'Super League.'"

that negotiates media rights on behalf of 70 or more schools with the most lucrative football programs could violate antitrust laws.

Section 205 of the PCSA, as amended, would prohibit a covered conference from acquiring the assets or media rights of an institution that is not a covered institution if, after the transaction, the covered conference would have more than 20 members. In addition, Section 205 would add a Section 7 to the SBA to limit the ability of conferences generating more than $700 million in revenue for 2025 or any subsequent tax return to merge or consolidate with, or acquire the assets or media rights of, another covered conference[77] or a covered institution,[78] unless the transaction would produce a conference including at least 75% of FBS schools (i.e., a number sufficient to form the covered entity described in the "Antitrust Exemptions to Form a Covered Entity" section above). The ACC, Big Ten, and SEC each reported more than $700 million in their FY2025 tax returns.[79] The Big 12 announced in May 2026 that it projects that it will earn more than $700 million in FY2026.[80]

Conditioning the formation of an entity covered by an antitrust exemption on the percent of DI schools or total number of schools that participate might affect the amount of revenue generated from media rights for the participating schools. A threshold for the share of FBS schools required to participate in a covered conference (such as 75% under the PCSA, as amended) could enable college football programs that significantly improve their performance within a few years to participate in the joint negotiations of media rights.[81] Such schools might be otherwise shut out from new leagues, such as the proposed super league that would be composed of the top 70 college football programs.

Conditions for Switching Conferences

Congress could continue to permit conferences to delineate the terms and conditions for member schools to leave or join a conference. The freedom of schools to depart and join conferences without restrictions may lead to increased off-the-field competition among conferences. Absent congressional intervention, schools and conferences may continue to sue one another to exert control over their ability to choose membership.

Section 205 of the PCSA, as amended, would effectively require ACC, Big Ten, and SEC member institutions, such as the ACC's Florida State and Clemson, to compete as independents for a five-year waiting period before joining another Power Four conference.[82] Schools in the Big

[77] The new §7(f)(1) would define a *covered conference* as "a conference, the primary athletic revenue of which is derived from the sale or transfer of media rights relating to intercollegiate football" (§205 of the PCSA, as amended).

[78] The new §7(f)(2) would define a *covered institution* as "during the 6-year period beginning on the date of enactment of the [PCSA, as amended] an institution that has, at least once in the preceding 3 years, competed in intercollegiate football as a member of a covered conference that reported more than $700,000,000 in revenue on its fiscal year 2025 tax return or any subsequent tax return" (§205 of the PCSA, as amended).

[79] Brent Schrotenboer, "New Tax Filing Show College Sports' Financial Arms Race Has New Winners—and Losers," *USA Today*, May 22, 2026, https://www.usatoday.com/story/sports/college/2026/05/22/power-4-conference-money-comparison-big-ten-sec-acc-big-12-pac-12-brett-yormark/90204563007/.

[80] Steve Samra, "Big 12 Announces Record $710 Million in Projected Revenue," *Yahoo! Sports*, May 29, 2026, https://sports.yahoo.com/articles/report-big-12-set-announce-182822159.html.

[81] See, for example, Craig Meyer, "Indiana Was the Worst Team in College Football History. Now It's Playing for a CFP Title," *USA Today*, January 19, 2026, https://sports.yahoo.com/articles/indiana-worst-team-college-football-110446591.html.

[82] See John Wilner, "How the Protect College Sports Act Would Impact Conference Realignment," *The Seattle Times*, August 7, 2026.

12 would be bound by the waiting period once the conference reports revenues of more than $700 million.

On the one hand, restrictions on colleges to switch conferences, such as the ACC's 23-year grant-of-rights contract with its member schools, facilitate the ability of conferences to negotiate long-term media rights contracts by providing media organizations with greater certainty about matchups. On the other hand, changing developments in the television industry, such as the emergence of streaming services' interests in acquiring rights for sports telecasts, may make the flexibility of shorter-term media contracts more attractive to member organizations.

Funding for Video Production Facilities

Background

Colleges and universities seeking media distribution of college sports competitions face decisions about how much to invest in media production and distribution facilities, how to fund their construction, and how to fund their maintenance and operation.[83] For example, the contract between SEC and ESPN (which owns the SEC Network) stipulates that schools must produce sports broadcasts for distribution by the SEC Network.[84] When the SEC Network launched in 2014, reports indicated that some schools spent millions of dollars—using either private or school funds—to build or expand their video production facilities and operations.[85] According to one journalist, "schools without strong production infrastructure may struggle to meet broadcast standards. They may also lose opportunities to sell sponsorships, create original programming or control their athletic archives."[86]

Reported Funding Challenges of HBCUs

According to a 2023 report published by the Century Foundation,[87] HBCUs that are land-grant universities have traditionally received less federal funding than other land-grant universities.[88] A report published in July 2026 by Candid and ABFE: A Philanthropic Partnership for Black Communities reported that their examination of foundation grants available from 2015 to 2019 found that "HBCUs received, on average, about two-thirds of what foundations paid out to

[83] Dan Daley, "New Broadcast Control Rooms at USTA Reflect College Sports' New Media Realities," Sports Video Group, May 14, 2024, https://www.sportsvideo.org/2024/05/14/new-broadcast-control-rooms-at-utsa-reflect-college-sports-new-media-realities/.

[84] See Melani Alanis, "Texas Athletics, Moody College, Train Students on Video Production for SEC Network," *Texas Connect*, The University of Texas at Austin, August 31, 2024, https://texasconnect.utexas.edu/2024/08/31/texas-athletics-moody-college-team-up-to-train-students-on-video-production-for-sec-network/.

[85] SI Staff, "Schools Invest Million Preparing for SEC Network," *Sports Illustrated,* August 12, 2014, https://www.si.com/college/2014/08/12/ap-fbc-sec-network-ready-launch.

[86] Steven J. Gaither, "Congress Bill Includes Major Sports Media Investments for HBCUs," *HBCU Gameday*, August 4, 2026, https://hbcugameday.com/2026/08/04/congress-bill-includes-major-sports-media-investment-for-hbcus/.

[87] Most historically Black colleges and universities (HBCUs) were established between 1867 and 1900 with the purpose of serving the educational needs of Black Americans who, at the time and to a certain extent afterwards, were denied admission to many traditionally white institutions. CRS Report R43237, *Programs for Minority-Serving Institutions Under the Higher Education Act*, by Cassandria Dortch.

[88] Denise A. Smith, *Nourishing the Nation While Starving: The Underfunding of Black Land-Grant Colleges and Universities* (executive summary), The Century Foundation, July 24, 2023, https://production-tcf.imgix.net/app/uploads/2023/07/20183022/Nourishing_executive_summary.pdf. For additional information about the U.S. land-grant university system, see CRS Report R45897, *The U.S. Land-Grant University System: Overview and Role in Agricultural Research*, by Eleni G. Bickell.

composites of similarly situated institutions."[89] Thus, while the financing of video production facilities to comply with media rights contracts may be a challenge for colleges generally, these reports indicate that the financing may present a greater challenge for HBCUs.

Issues for Congressional Consideration and Potential Options

Production Requirements of Media Rights Contracts

A potential issue for congressional consideration is the extent to which media organizations may benefit from requiring colleges and universities to cover some of the costs for college sports telecast production and distribution. As schools rely on students to fulfill their production mandates, a potential issue for consideration is the extent to which schools and media organizations standardize working conditions and expectations for students. Congress could monitor industry developments and consider whether to develop or amend legislation to govern labor practices of schools and media companies that rely on students to produce and distribute college sports telecasts.

Funds for Selected Criteria

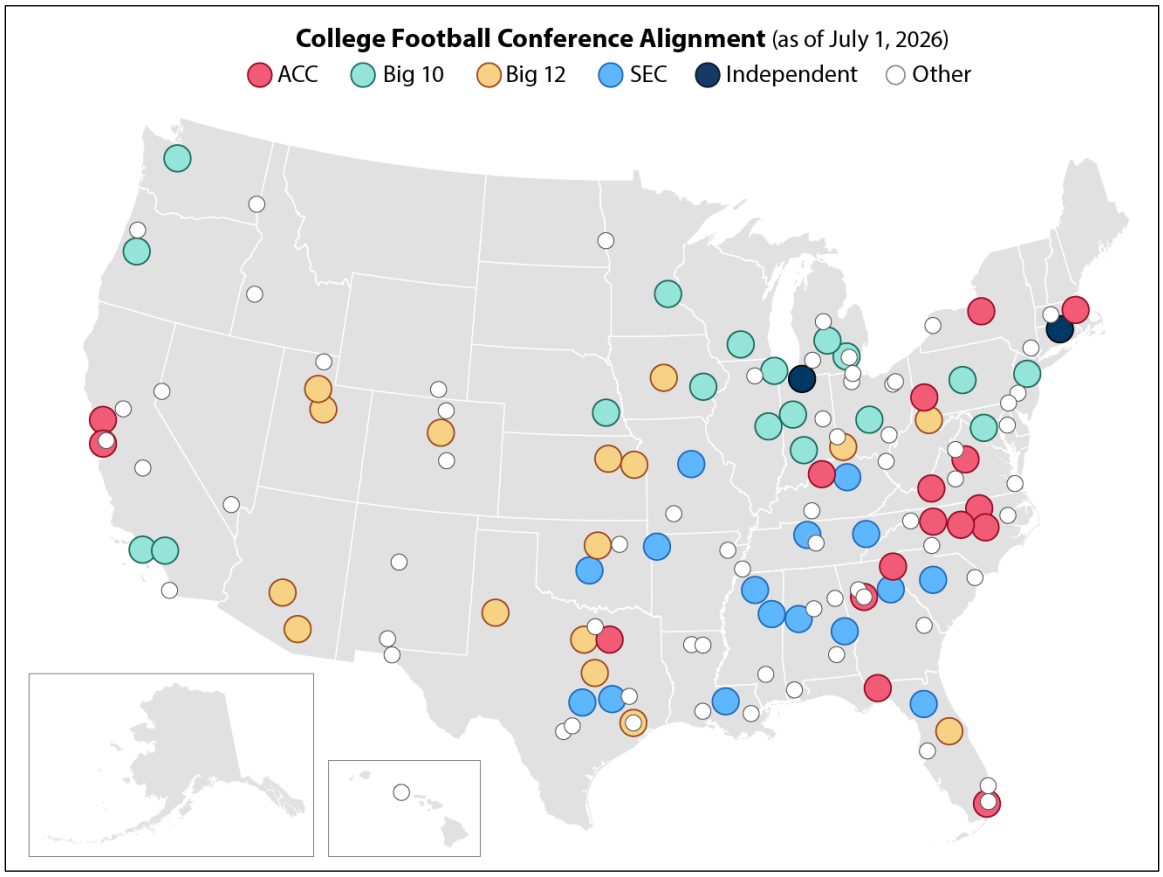
Congress could authorize and appropriate funds to be available for schools that meet specified criteria, such as financial criteria or HBCU status. These funds could be made available to construct or maintain production facilities and journalism programs. A potential issue for consideration is whether schools that receive federal grants to construct production facilities and journalism programs have the resources needed to maintain and operate them.

For example, Title III of the PCSA, as amended, would authorize Congress to appropriate $180 million annually for each of FY2027-FY2032 for a competitive grant program for HBCUs. The purpose of the grant program, which would be administered by the U.S. Department of Commerce, would be to help HBCUs invest in infrastructure relating to broadband (i.e., high-speed internet service and equipment), information technology, journalism, media production, and sports broadcasting.

[89] Cathleen Clerkin et al., *Philanthropy and HBCUs: Foundation Funding to Historically Black Colleges and Universities*, Candid and ABFE: A Philanthropic Partnership for Black Communities, May 2023, pp. 6-7, https://www.issuelab.org/resources/41808/41808.pdf; and Candid, "New Philanthropy and HBCUs Report Reveals Legacy of Chronic Underfunding to Historically Black Colleges and Universities," press release, May 2, 2023, https://www.prweb.com/releases/new-philanthropy-and-hbcus-report-reveals-legacy-of-chronic-underfunding-to-historically-black-colleges-and-universities-874346352.html.

Appendix A. Football Bowl Subdivision Conferences

Figure A-1. Football Bowl Subdivision Conferences



Sources: CRS, based on data from Brian Wilmer, "College Football Realignment: Conference Changes for 2026 Take Effect Today," FBSSchedules.com, July 1, 2026, https://fbschedules.com/college-football-realignment-conference-changes-for-2026-take-effect-today/ (data about the composition of conference memberships); and various school and conference websites (data about the location of schools' football stadiums).

Notes: The Power Four conferences are the (1) Atlantic Coast Conference (ACC), (2) Big Ten Conference, (3) Big 12 Conference, and (4) Southeastern Conference (SEC). As of 2026, the University of Notre Dame and the University of Connecticut negotiate rights for their football telecasts independently of conferences. In this figure, "Other" refers to conferences other than the Power Four.

Appendix B. College Football Media Rights Contracts

Table B-1. Current Regular Season College Football Media Rights Contracts

For Power Four conferences

Negotiator	Media Rights Holders	Some Games Available to Viewers Without Subscription?	Contract Years	Average Price per Year	Additional Contractual Terms and Conditions
Big Ten Conference	FOX, NBC, and CBS (broadcast networks[a]	Yes	2024-2030	$1.15 billion	Students receive instruction and production experience.
Southeastern Conference (SEC)	ESPN (cable network)[a]	Yes	2025-2034	$710 million	Schools pay for production facilities. Students can get production experience.
Big 12 Conference	FOX (broadcast network) and ESPN (cable network)	Yes	2026-2031	$380 million	Schools must produce sports broadcasts not selected for ESPN cable network.
Atlantic Coast Conference (ACC)	ESPN (cable network)[c]	No	2017-2036	$240 million	Schools pay for production facilities. Students can get production experience.

Sources: Scott Robson et al., *Sports Report 2026,* S&P Global Market Intelligence Kagan, April 1, 2026 (available via subscription); S&P Global Market Intelligence Kagan database (profiles and ownership structure of cable networks); ESPN News Services, "Regulators OK ESPN's Deal for the NFL Network, RedZone Rights from NFL," ESPN, January 31, 2026, https://www.espn.com/espn/story/_/id/47793895/regulators-ok-espn-purchase-nfl-network-redzone-rights-nfl-equity-stake (ownership structure of ESPN); SEC Sports, "Schedule, Football," accessed October 1, 2026, https://www.secsports.com/schedule/football; Big Ten Network, "About Big Ten Network," accessed August 21, 2026, https://bigten.org/btn/about/big-ten-network/; Melani Alanis, "Texas Athletics, Moody College Train Students on Video Production for SEC Network," *Texas Connect*, The University of Texas at Austin, August 31, 2024, https://texasconnect.utexas.edu/2024/08/31/texas-athletics-moody-college-team-up-to-train-students-on-video-production-for-sec-network/; SEC Network, "About SEC Network/SEC Network+," May 19, 2022, https://www.secsports.com/news/2022/05/about-sec-networksec-network-1; Nathan Murthy, "Bring it Home: Utes Production Studio," *@theU* (blog), The University of Utah, August 7, 2026, https://attheu.utah.edu/facultystaff/bringing-it-home/; ACC Network, "Frequently Asked Questions," accessed August 21, 2026, https://theacc.com/news/2019/3/11/general-acc-network-frequently-asked-questions.aspx; and Clemson University, "ACC Network Information," July 1, 2019, https://clemsontigers.com/news/2019/07/01/acc-network-faq.

Notes: Data as of March 2026 (the most recent data available) unless otherwise noted.

a. The Big Ten Network is a cable television network that is jointly owned by Fox Corporation (61%), the parent organization of the FOX broadcast network, and the Big Ten Conference Inc. (39%). The Big Ten Network also operates a streaming service, B1G+.

b. The SEC Network is a cable television network that is owned by ESPN, which in turn is jointly owned by the Walt Disney Company (72%), Hearst Communications Inc. (18%), and the National Football League (10%). The SEC Network also operates a streaming service, SEC Network+.
c. The ACC Network is a cable network that is owned by ESPN, which in turn is jointly owned by Walt Disney Company (72%), Hearst Communications Inc. (18%), and the National Football League (10%). The ACC Network also operates a streaming service, ACC Digital Network.

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Map prepared by Molly S. Keen, CRS Geospatial Information Systems Analyst, and Amber Wilhelm.

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